



Identity Theft and Fraud Customer Guide

Introduction and Initial Steps

AIG's Identity Theft & Fraud Group understands that resolving issues related to identity theft can be a time consuming and frustrating process. In order to assist you, we have gathered information from a multitude of sources to provide you with a convenient reference guide and a tool for tracking your progress through this process.

This Identity Theft Customer Guide is full of contact information, procedures for resolution and measures for protecting yourself from identity theft in the future. To begin the recovery of your identity, carefully read over the checklist summarized below and work through the more detailed sections in the subsequent pages of this guide.

Please read your Identity Theft Customer Guide thoroughly before you begin. Create a hard copy file and keep as much information as possible in order to help yourself and law enforcement. Make sure you follow up on every conversation with agencies and businesses with a letter (return receipt requested) summarizing the conversation and keep copies for yourself. We have provided you sample letters to assist you. Keep an encrypted electronic file on your computer so you may send documents quickly by email.

We suggest that you encrypt all documents with sensitive data (i.e. your Social Security Numbers, birth date, account numbers, confidential data, etc) and also keep it on a thumb drive in a locked drawer. If you use Microsoft Word, it's easy to encrypt; go to file, then prepare, then protect—encrypt with password. Use a password with 12 numbers/letters/characters for all your documents. When sharing the documents by email, do not send the password by email. Call in the password to the person who will retrieve the file. Keep your files encrypted on your computer. When sending any important emails, send with a return receipt and keep a copy yourself. You must keep a copy of all that you send to show when and to whom you sent information. This will be a lifesaver in many instances to prove that you have complied with legal requirements to get your money and life back. Keeping copies and good records will be essential for law enforcement and courts if the imposter is prosecuted and you ask for restitution. Our staff and other organizations may need copies of these documents as well for reimbursement and to assist you.

Checklist

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| ☐ Contact the three major credit bureaus and ask that they place a "one year fraud alert" on your credit record. This alert notifies creditors to call you before issuing credit in your name. Provide your cell phone number so they can immediately reach you. Follow up with letters provided in the templates guide. | ☐ Immediately report any fraudulent activity to local, state or federal law enforcement agencies and request an "Identity Theft Report." (Law enforcement agencies include, but are not limited to: local police, sheriff, local postal inspector, state Attorney General, FBI, Department of Motor Vehicles, etc.) |
| ☐ Contact both by phone and in writing all financial institutions and collection agencies in which fraudulent activity has occurred. Also contact any government agencies where your information was used fraudulently (i.e. the IRS, health care providers, state-licensing boards, etc.). See the indicated template letters provided. | ☐ Fill out the "Federal Trade Commission ID Theft Affidavit" provided and make enough copies to attach to all letters you will send by mail to various agencies, financial institutions and law enforcement. (Keep an electronic encrypted copy on your computer to send in an expedited manner to entities that will accept documents electronically.) |
| ☐ Go over the "Tips for Protecting Yourself" section for ways you can institute protective measures in your life to minimize future exposure to identity theft. | ☐ Refer to the Additional Resolution Resources section for further information regarding the resolution of your identity theft. |



As you work through the resolution process, complete the “Identity Theft Expense Reimbursement Claim Form.” Record any expenses that you have incurred due to the fraud and send it to the address indicated for review and claims processing for reimbursement.

Your expense and time loss record will assist us in the claims process for you. It will also help you receive possible restitution from the courts if your imposter is prosecuted and possible tax deductions for fraud losses under 165e of the United States Tax Code. Save copies of all documents and correspondence related to your identity theft resolution, including receipts for expenses in a hard copy file and an electronic file on your computer and a thumb drive. Because the documents will contain sensitive data we recommend that you encrypt the documents with a complex password.

1. Contact Credit Bureaus and Send Follow-up Letters

Please be aware that some of the sections below overlap with one another and they do not necessarily need to be completed in any particular order (some may in fact need to be completed simultaneously). Certain fraud alerts and reports require information and evidence from other documents and reports. For all correspondence you will need an Identity Theft Report from a law enforcement agency and you will need to complete a Federal Trade Commission Affidavit (which is in the appendix of this guide).

Equifax: 800-525-6285

Experian: 888-EXPERIAN (888-397-3742)

TransUnion: 800-680-7289

☐ CALL TO PLACE FRAUD ALERT

Your first step should be to contact the credit bureaus using the toll-free phone numbers listed above and place a “one year fraud alert” on your record. The call will be automated and you will have to provide your Social Security Number and your address. Then you will be transferred to a representative to offer you credit monitoring for a fee. You do not need to buy those products unless you desire to do so. You will still be entitled to receive a fraud alert and a free credit report if you refuse to purchase the credit monitoring. The fraud alert notifies creditors to call you before issuing new credit in your name. Once you call one of the credit bureaus, they should notify the other two, but it’s safer to call all three.

Providing your cell phone number rather than your home phone number as a point of contact is best because you have told creditors to contact you first before issuing credit. If you wish to obtain credit when you are out shopping, the creditor must be able to reach you by call.

☐ GET YOUR FREE CREDIT REPORT

After you call to set the fraud alert, the credit bureaus will send you a letter to confirm the fraud alert and notify you of your right to receive a free credit report. Using the report number assigned to you in the letter, immediately request the free report as a fraud victim pursuant to the instructions. This free report is in addition to your free annual credit report from each of the three credit bureaus, which you may access at www.annualcreditreport.com. You are also entitled to at least one other complimentary credit report as a fraud victim. Depending on your state law, you may be entitled to more free reports as a victim (i.e. in California, you are entitled to one free report a month as a victim of fraud).

☐ WRITE FOR EXTENDED FRAUD ALERT

Under federal law the credit bureaus are required to place a fraud alert on your file for one year. If you wish to extend a fraud alert beyond that, you must write a letter to the bureaus requesting the 7-year fraud alert be placed on your account. You will have to submit with your letter, an “Identity Theft Report,” (from a law enforcement agency), a copy of the completed Federal Trade Commission affidavit which is included with this guide, a government issued photo ID and a utility bill showing your current address. Relevant phone numbers and addresses of the credit bureaus can be found in the “Resources to Assist You” section beginning in this guide.

☐ NOTIFY BUREAUS OF FRAUD AND ERRORS IN WRITING

Once you receive your credit reports from each of the three bureaus, review them carefully and write a letter to each one of the bureaus (return receipt requested), disputing all FRAUDULENT and erroneous items appearing on the reports. Request that all the fraudulent documentation be immediately blocked (deleted) from your file. The credit bureaus must then notify the creditors and inform them of the fraud.



The disputed items on your credit profile may only be re-inserted if the creditors can verify the accounts as accurate. That's why you also must notify the creditors as well by phone and in writing of the fraud. Be sure to keep electronic and hard copies of the letters you send and log the date you sent the letter and when you receive a response. The bureaus should respond within 30 days. You also have other rights regarding what you may ask the credit bureaus to do to protect you. Please see the letters provided in the template guide to assist you.

☐ **CONSIDER A SECURITY FREEZE TO BLOCK ANY NEW CREDITOR**

If you are concerned that the fraud alert is not strong enough to stop the fraudster, you may place a security freeze on your credit profiles with the credit bureaus at no cost. To request a security freeze as a victim you will write to the credit bureaus and include your full name, with middle initial and generation, such as JR, SR, II, III, etc.; Social Security number; date of birth (month, day and year); current address and previous addresses for the past two years; a valid investigative or incident report or complaint with a law enforcement agency or the DMV; one copy of a government issued identification card, such as a driver's license, state or military ID card, etc.; and one copy of a utility bill, bank or insurance statement, etc. Make sure that each copy is legible (enlarge if necessary) and displays your name and current mailing address and the date of issue (statement dates must be recent). Copies of any documents should be sent, and you should always retain your original documents. Please see the letters provided in the template section of this guide to assist you.

You may write to the credit bureaus by mail or you may activate a freeze online at the website of each of the three credit bureaus. You will set up a Personal Identification Number (PIN) that you may use to allow new potential creditors to access your credit reports. A freeze serves to prohibit new creditors from reviewing your credit profile without your permission. In order to release your credit report to a potential creditor you will need to provide the credit bureaus your PIN. The freeze will not stop your current creditors from accessing your file for an account reviews.

If you want to open a new credit account or get a new loan, you can "thaw" the freeze on your credit file, as it is a bit time consuming to get the credit bureaus to remove the block. You can "thaw" the security freeze for a period of time for a specific creditor or all creditors. But if you need access to instant credit for a car or a loan, you may only wish to keep an extended fraud alert on your profile where the creditor calls your cell phone to get permission to access your credit profile.

For more information on security freezes visit: www.consumer-action.org/english/articles/freeze_your_credit_file#Topic_04

1.1 Contacting the Bureaus Regarding the Notification of Child Identity Theft

If your child's identity is used by another person you will probably learn about this when collection calls ask for your child you are trying to open up a college account for the child or perhaps you are intending to help your child establish credit by purchasing a car. Children under the age of 18 are vulnerable to become victims of identity theft when a thief can use a child's unblemished personal data such as name and Social Security number to obtain credit, employment, government benefits or even commit crimes. Identity thieves target children because the crime can go undetected for years, often until the child applies for credit, a job or some government benefit.

The credit reporting agencies do not usually maintain credit files on minor children unless there is credit set up for them when they are young or if someone is using their identity fraudulently. If you suspect that your child's information has been used fraudulently, you should notify the three major credit bureaus. You may be able to do this by calling the bureaus at the toll-free numbers below. Follow the cues for "fraud" on the automated phone systems.

Experian: 888-397-3742
www.experian.com/fraud/center.html

Equifax: 800-525-6285
www.alerts.equifax.com

TransUnion: 800-680-7289
www.transunion.com



You will need to provide the child's name, Social Security number and other requested information. If the phone system gives you a response of "no file found" that will be a relief. If a file is found you need to follow up with the credit bureaus in writing whether or not a file is found because a fraudster could be using a different name with your child's Social Security number. Eventually the collection agencies will "victimize" the person who owns the Social Security number that was used to establish the credit. Report the suspected identity theft and ask them to confirm in writing that they have no file on your child. If there is a file in your child's name, you will be told that a fraud alert has been placed on the file. You will also be sent instructions on how to get a copy of the child's credit report from each of the credit bureaus. There will be no charge for these copies. You may wish to put a security freeze on the child's credit profile until he/she is 16 years old.

If the child is under 13 and no true credit has been established in his/her name consider going to the local Social Security office or call them and complete the forms to change the Social Security number due to fraud. If your child clearly has been victimized by a fraudster, please see the letters provided in the template guide to assist you.

1.2 Contacting the Bureaus for Notification of Identity Theft of a Deceased Person

If you learn that one of your deceased family members has been targeted for identity theft there are some unique problems. As a surviving spouse or an heir it's your job to provide proof that there was fraud and that the person who died did not apply for credit or loans or engage in the fraudulent financial transactions. You will need to provide the death certificate of your loved one and proof that you have the right to dispute the fraud on that person's behalf. You will also need to provide personal information and a statement indicating why you believe the deceased is a victim of identity theft. If you are the spouse of the deceased or if you are the Executor or Trustee of the Estate, you should provide that evidence of your authority and include a police report of the fraud along with other information to the credit bureaus and the creditors and other agencies. Please see the letters provided in the template guide to assist you.

1.3 Follow Up With Credit Bureaus to Verify Deletion of Fraud

Once you have written to the credit bureaus requesting the blocking of the fraud on your credit reports, it will be critical to review the "corrected" reports to make sure that all the fraud was indeed deleted and that no new fraud appears on the reports. You may need to write several letters to the credit bureaus until all the fraud is deleted. Look carefully at each section of your report and especially the inquiries section of the credit report, which states "these entities received your credit report for the purpose of issuing credit." If there are companies that appear that you did not authorize to receive your credit report, you must notify these companies of the fraud before they issue new accounts and also ask that the fraud inquiries be blocked as well.

It is very important to look for possible new creditors, utility companies, property owners, lenders, insurance companies and potential employers because many of these will not show up in the account section of your credit report. Additionally if a fraudster applies for a business credit card in your name, the account will not appear on your credit report, but an inquiry will display in the inquiry section. Also most utility companies do not report accounts to the credit bureaus. Scrutinizing this section of your credit report will give you an early indication if your fraudster is trying to use your credit history for other financial benefits.

If you do see new "inquiries" from companies that you did not give your permission to obtain your credit report, you must inform the credit bureaus immediately to remove the inquiries and notify the companies of the fraud. Call the companies that obtained your credit report to ascertain why they requested your credit report. Speak to their fraud department and get all contact information. Then write a letter to the company explaining the fraud inquiry and tell them not to issue an account in your name to the fraudster. Treat the company as you would any other creditor who issued a fraud account and follow the instructions below with these companies.

If you have sent several letters and you have complied with the credit bureaus requests and they have still not removed the fraud, please let us know. It is very important that you have copies of the letters that you sent to the bureaus, all of your attachments and your logs to indicate that you were in compliance with your duties.



2. Contact Financial Institutions and Other Agencies by Phone and In Writing

You will need to carefully review your credit reports, any fraudulent credit card or other financial statements and correspondence from creditors or collection agencies. Although it is a challenge to deal with this time consuming process, please follow the steps below. Always send letters via certified mail with a request for a return receipt to make sure you have confirmation that the companies and agencies receive your letters. If you also send e-mails, set your computer to provide a return receipt and keep copies of all emails sent and received in an email folder. Make copies of the hard copy items sent to all institutions. Store hard copy records in a locked cabinet, and your electronic letters and scanned documents should be encrypted on your computer and backed up.

2.1 Call All Institutions to Notify Fraud Departments of Identity Theft. Call Lenders, Credit Card Companies, Banks, Utility Companies, Etc. Where Fraudulent Activity Occurred and:

- Write down the phone number, date of call and name of contact using the Correspondence Log located in the folder provided or better yet, create an electronic log spreadsheet to update on your computer.
- If your legitimate accounts were used fraudulently, cancel these accounts and have the bank or creditors issue new account numbers with that institution. Request the account closures both orally and memorialize in writing. Pursuant to Federal law, (FCRA 609e) ask that all fraud documentation be sent to you and the law enforcement investigator who wrote your “Identity Theft Report.” Tell the creditor to notify the credit bureaus that your account that was used fraudulently (credit card takeover fraud) should be reported to the credit bureaus as closed due to fraud. The creditor should close the fraudulently used account and issue you a new account immediately. Don’t cancel any credit cards which have not been fraudulently used because it will negatively affect your credit. It is important to keep intact your legitimate credit card accounts unaffected by fraud so that you will have access to credit when needed, and so your credit score won’t be negatively impacted.
- Cancel any fraudulently created accounts that were opened in your name by an identity thief. Make sure that the creditors close the accounts and have the accounts deleted from your credit profile. Check your credit report after requesting deletion to make sure the fraudulent accounts are removed. Also, make sure the fraudulent inquiries by those creditors are removed; numerous inquiries downgrade your credit score.
- If you have legitimate accounts that were not affected by fraud and you are worried that the impostor has your information, ask that a “Fraud Alert” be placed on your account profile with a new password instead of canceling those accounts.
- If your bank account, checking account, savings account, HSA account or investments or other financial accounts were invaded by fraud, you should close these accounts and transfer funds to new account numbers. Those account numbers should not be used again. Also change your passwords and never use your mother’s maiden name or your Social Security number as your password.
- Confirm that the institutions have your correct address and ask them to delete any fraudulent addresses, phone numbers or other fraudulent information from the creditor’s or bank’s profile.
- Request that all future correspondence with you regarding changes or additions of names or addresses to your legitimate accounts be made to you in writing at your home address or by fax at the fax number you provide or your email address. If they have any questions, they should call the phone number that you provide to them.

2.2 Notify All Financial Institutions and Companies Who Issued Accounts in Writing: Ask for Documents Showing Evidence of the Fraud.

Write letters to all institutions at which fraudulent activity occurred by using the letter template provided. According to federal law, victims of identity theft are entitled to copies of fraudulent records from a business that issued a fraudulent account (i.e. applications for credit, sales receipts, copies of checks and other records). You must provide a copy of the FTC Affidavit, government-issued photo identification, a copy of an “Identity Theft Report” from a law enforcement agency and a copy of utility bill showing your address. The business is required to provide copies of these records to you within 30 days of your request at no charge. You are entitled to have free copies sent to the law enforcement investigator who wrote the identity theft report as well.



2.3 ATM & Debit Cards

An ATM card is a bankcard, and unlike a debit card may not be used as a credit card. If your ATM or debit card has been stolen or compromised, immediately call the financial institution to file a report. Make sure you cancel the card immediately. You must report fraudulent activity as soon as possible to minimize your financial liability. If you report an ATM or debit card missing to the institution that issues the card before someone uses the card without your permission, you can't be responsible for any unauthorized withdrawals. If you report the loss within two business days after you realize your card is missing, you won't be responsible for more than \$50 of unauthorized use. If you report the loss within 60 days after your statement is mailed to you, you could lose as much as \$500 because of an unauthorized transfer. If you don't report an unauthorized use of your card within 60 days after the card issuer mails your statement to you, you risk unlimited loss. You could lose all the money in that account, the unused portion of your maximum line of credit established for overdrafts and maybe more. For that reason, we suggest you set up account alerts to notify you by text or email anytime an electronic transfer is made so you have early notice of any fraud.

If your ATM card was used, the fraudster had to have known or captured your password (by hacking) to get money from your account. If that is the case, immediately cancel that ATM card. To clarify, an ATM card is a bankcard that does not have a Visa/MasterCard logo on it and can only be used with a PIN usually at your bank or an ATM machine.

Your debit card, however, looks similar to an ATM card, but it has a credit card logo on it, such as a Visa or MasterCard logo. This type of card can be used on the internet, by phone or fax without the card and without the PIN. Therefore it is more dangerous to use than an ATM card. If you see electronic unauthorized transfers from your debit card, immediately call your financial institution and cancel the card. It is wise to get a new checking account as well to avoid further loss.

When cancelling your debit card, consider replacing it with an ATM bank card that does not have the Visa or MasterCard logo, and cannot be used as a credit card. It cannot be used for purchases, but it can be used for transferring funds, depositing checks or taking cash out of the bank. With a Debit card, your funds could be drained your account before you have an opportunity to review such charges. It is safer to use a regular credit card for purchases instead because you have the opportunity to review the billing statement before you pay for them. If you have difficulty getting credit, you may consider a pre-paid credit card which has better fraud protections than a debit card. For further protection, set up email, text or phone alerts from your bank to let you know anytime there is an electronic transfer of funds from your account so you can protect yourself and intervene quickly if fraud occurs. Follow-up in writing using the letter template 2A.

2.4 Notification to Brokerage Accounts

If an identity thief steals funds from your brokerage accounts, immediately report the incident to the brokerage company and notify the Securities and Exchange Commission at www.sec.gov. You should also report this to the Financial Industry Regulation Association and you can do this at www.finra.org. Unfortunately, if you manage investments online, you may be susceptible to malicious computer programs that monitor your keystrokes. If you access investments using wireless connections to the internet and your computer has not been protected by firewalls, you will need to immediately have your computer analyzed.

Please know that you do not have the same type of protections against fraud with brokerage accounts as you do with credit cards and your bank accounts. Contact your financial planner and brokerage to find out the protections you have and the steps to take. Aside from complaining to the Securities and Exchange Commission and the Financial Industry Regulatory Association, contact the FTC at 877-ID-THEFT. Set up complex passwords and email and text security alerts to inform you anytime funds are transferred. Please see the letters provided in the template guide to assist you.

2.5 Notification to Government and Private Lenders Regarding: Student Loans

If your imposter has obtained student loans in your name, you will probably find out from your credit reports or from collection letters for failure to make payments. Contact the school and the lender to notify them of the fraud. Ask them to notify law enforcement and request that the account be closed. You will need to send your Identity Theft Report plus your FTC affidavit and your police report and call the U.S. Department of Education Inspector General's hotline 800-MISUSED (800-647-8733) to dispute these loans with the credit bureaus and provide evidence that the loans do not belong to you.



FBI Internet Fraud Complaint Center. The Internet Crime Complaint Center (IC3), a partnership between the FBI and the National White Collar Crime Center, allows you to report suspected cases of Internet and e-commerce fraud, including phishing. Web: www.ic3.gov. Please see the letters provided in the template guide to assist you.

2.6 Notification of Identity Theft to Collection Agencies

You may have received calls or letters from collection agencies, or you may have found fraudulent collection accounts on your credit reports. You have additional rights under the Fair Debt Collections Practices Act as an identity theft victim. Once you notify the collection agency of the fraud, they must stop all collections and upon your request they must send you all evidence of the account, and they must notify the creditor of the fraud. You must also write a letter to them requesting that your rights be enforced. Please see the letters provided in the template guide to assist you with dealing with collection agencies.

2.7 Notification to Utility and Cell Phone Companies

Most utility companies do not report to the credit reporting agencies. However this may change in the near future as there are information brokers who are collecting and selling your utility account information. Under the Fair Credit Reporting Act you have a right to see such information but presently it is not easily accessible. So for that reason you may not know of this type of fraud until you are sued or get a letter as to collections for an account you do not own. Your credit report will however display inquiries that will indicate that a utility company or a cellular company has reviewed your credit report, so that it why it's so important to review the inquiry section. Once you are notified of a fraudulent account, call the company and follow up in writing with the letters provided in the template section of this guide.

2.8 Notification Regarding Stolen or Fraudulently Created Checks and Checking Accounts

If you have had checks stolen, or learned of checks that were fraudulently created with your bank account number to steal money from your account or bank accounts that were fraudulently established in your name, contact the financial institutions involved immediately. Ask your bank to report it to ChexSystems, a consumer reporting agency that compiles reports on checking accounts. Also, you should place a security alert on your file at www.consumerdebit.com/consumerinfo/us/en/chexsystems/theftaffidavit/index.htm or by phone: 800-428-9623. You have the right to get a free consumer report that is compiled about you as a victim of fraud.

For any fraudulent bank accounts set up in your name that don't belong to you, you must provide the banks with your completed FTC affidavit and your Identity Theft Report and have them give you the contact number for the companies to whom they report fraudulent checks. If your own checks were used fraudulently immediately close your accounts and open new accounts. Put stop payments on any outstanding checks about which you are uncertain. Give the bank a secret password for your account (not your mother's maiden name or Social Security number). If your checks are rejected at stores where you shop, contact the check verification company that the merchant uses. Set up bank account alerts to notify you by phone, text or email when there is an electronic transfer of funds from your account. Consult with the bank institution's fraud department and send a follow-up letter using the letters provided in the template section of this guide.

3. Report to Local Law Enforcement Authorities

You will need to contact law enforcement immediately if new credit accounts are opened in your name or money is stolen from your financial accounts. In addition to calling the credit bureaus and financial institutions, you'll need to contact law enforcement to file an "Identity Theft Report," since it will be necessary to send a copy of this report to the credit bureaus, creditors and others to verify your case.

You can file the report with your local police, sheriff, Postal Inspector, Department of Motor Vehicles, FBI, Secret Service or your state Attorney General's office. If you are the victim of credit card fraud only, where a thief used your own credit card number and charged your true account, you need not notify police (unless your wallet was stolen and more than one card was taken.) For less burdensome credit card fraud, call your credit card company to cancel the card due to fraud and get a new card issued. You will need to complete a form with the creditor. Make sure the company reports the card to the credit bureaus as stolen. However, an



identity theft report is critical if someone used your Social Security Number to obtain new credit, government benefits, medical care, took over or created bank accounts or investment accounts or used your name for cyber fraud or criminal identity theft.

To obtain the identity theft report, you may need to show law enforcement your FTC affidavit and other evidence of the fraud, including your credit reports if you have received them. Do not provide copies of your credit reports to law enforcement to keep unless you blacken out your sensitive information (like your Social Security number or your true account numbers) because they will attach those documents to your police report, which will become public record. Instead, make a list of all the fraudulent active to give to law enforcement. You can show them the credit reports and explain your situation and provide them the written list that they can attach to the report.

If the criminal has stolen your identity in a different state, you should still call your local law enforcement agencies first for a report. If the crime was committed in another state or country, you may also contact the FBI and the Secret Service. Understand that law enforcement may not have the time or a resource to investigate your case since this is such a labor-intensive crime. Law enforcement agencies have limited resources and hundreds of cases and violent crime has to take precedence so be collaborative and clarify that you need at least an “informational” report.

Kindly explain to law enforcement that it is critical for them to write a report because that document will be necessary to clear your good name. You will need the Identity Theft Report to block (delete) all fraudulent activity on your credit report. Without the law enforcement report, the credit bureaus have no duty to remove that fraud from your profile or provide an extended alert. Additionally, you will also need to send that Identity Theft Report to all creditors or entities that issued fraudulent accounts in order for them to send you and the law enforcement agency evidence of the fraud. Some police agencies may simply offer you a report number. You need to explain to them the necessity of having an actual report, so ask for at least an informational report so they are not forced to investigate when they do not have the resources to do so. You may also call your state attorney general’s office to help you get a report that you may attach to your letters to various entities.

Be sure that the report lists all the fraud known at the time (prepare a list of the fraudulent activities and accounts to give to the police) and follow up with written updates for law enforcement to attach to the report if you receive new evidence of further fraud. The more evidence you provide law enforcement the more likely that they will investigate.

In order to request a report, follow these steps:

- Tell law enforcement what has happened to you and how you learned of the fraud. Write a bullet point history to give to law enforcement before you meet with them to make their job easier. Provide your completed FTC affidavit to law enforcement to show the basic facts of your case. Be calm, polite and helpful even if you feel frustrated.
- Show law enforcement the credit reports, but do not give them copies (those reports have sensitive information, which becomes public record if you give it to them). Make a list of the fraudulent activity you found on each of the credit reports. Give law enforcement a copy of the document listing the fraud and fraudulent accounts. Keep a copy of this list for yourself. Make sure law enforcement attaches this document to the report and/or includes it in their report.
- Provide copies of all evidence of fraud (letters from creditors, collection letters, etc.) to law enforcement. Let them know you will provide further evidence from financial institutions to help them. Tell them you will have the creditors send documents of the fraud to the law enforcement investigator.
- Get a copy of the “Identity Theft Report” from law enforcement as soon as possible and before it is provided, get the report number and the name and contact information of the officer who took the report to give to creditors.
- Document the steps you have taken by writing them down and keeping this in your log.
- Attach a copy of the police report to all future written correspondence you send to companies and agencies as you work to resolve fraudulent activities. Please see the letters provided in the template section of this guide to assist you.

4. Non-Financial Identity Theft Issues

4.1 Medical Identity Theft

If your impersonator used your name and Social Security number to obtain healthcare or medical products or used your health insurance, you are a victim of medical identity theft. The thief may use your name or health insurance numbers to see a doctor, get prescription drugs, file claims with your insurance provider or get other care and this may negatively affect your insurance and the safety of your own future treatment.

Most health carriers and providers do not report to the credit reporting agencies unless bills are not paid. So your medical record will never appear on a credit report. You will not see any evidence of someone using your health insurance or your identity to get health care on your credit report unless the thief's outstanding balance is sold to collections which then will appear on your credit profile. You must read your medical and insurance statements regularly and completely. They may show warning signs of identity theft. Read the Explanation of Benefits (EOB) statement or Medicare Summary Notice that your health plan sends after treatment. Check the name of the provider, the date of service and the service provided. Make sure the claims paid match the care you received. If you see a mistake, contact your insurance company and the doctor who treated the impostor.

Federal law gives you the right to know what's in your medical files. Contact each doctor, clinic, hospital, pharmacy, laboratory, health plan and location where a thief may have used your information. Ask for the records in your name. You will need to pay for copies of your records. If you know when the thief used your information, ask for records from just that time period. Keep copies of your postal and email correspondence and a record of your phone calls, conversations and activities with your health plan and medical providers. Once you get all the records you will then be able to contact the providers and prove that you are not the person who was treated. You will be able to show that you are not the same person. Your body characteristics and blood type will likely be different. Many healthcare providers take photos and place them in the file. So that will also help you. Once you have the information you will be able to make a complete police report and affidavit. You will be able to at the very least ask that the impostor's medical records be segregated from yours and you will be able to show your health insurance carrier the fraud and ask that it be deleted from your file.

Medical identity theft is more than financial fraud; it also poses a danger to your health and it is a challenge to differentiate your medical records from that of the thief. You will want to make sure that the ailments of your imposter are no longer attributed to you. Visit www.worldprivacyforum.org to learn more about medical identity theft if this happens to you. Also visit www.mib.com, which is the Medical Information Bureau (MIB). It provides a specialty consumer report with health information for insurance companies. If you or your impostor applied for health, life or disability insurance within the last seven years there will probably be a report with medical information about you. So it is important to check for fraud.

5. If you learn from your benefit statements or collection efforts that you are a victim of medical identity theft:

- Contact each health care provider and ask for copies of your medical records without telling them of the identity theft.
- Check your state's health privacy laws. Some state laws make it easier to get copies of your medical records.
- Review your medical records and report any errors to your health care provider.
- Write all of your health care providers and your health insurance carrier to report the mistakes in your medical records.
- Include a copy of the medical record showing the mistakes and asking them to delete them from your records. They may want to keep the impostor's records as an alias.
- Include a copy of your police report or Identity Theft Report, your affidavit, your government issued photo ID, a utility bill and documents showing the errors.
- Send the letter by certified mail and ask for a return receipt.
- The health care providers and insurance company should respond to your letter within 30 days.
- If you are a victim of medical identity theft, use the sample letters to obtain your records and clear up your medical history with medical providers and health insurers. Please see the letters provided in the template guide to assist you in notifying the Medical Insurance Carriers of fraud, request for records and to follow-up.



4.2 False Civil Judgments

Fraudulent civil judgments (as a result of actions taken by your impostor) may not show up until long after the fraudster has assumed your identity. Victims of identity theft sometimes find that civil judgments have been entered in their names (for example: bankruptcy, personal injury for accidents caused by their impostor, collection accounts, unlawful detainers, etc.). If you learn that a judgment was entered or there is a lien against your home or property due to a fraudulent judgment, you must contact the court where the judgment was entered and the attorneys who handled the case to get a copy of the entire file and ask for help in setting aside the judgment against you. Contact our offices at 866-434-3572 immediately if you are served by a court to determine if legal fees are covered by your policy. You may need to hire an attorney to help you resolve the judgment as these issues could be complex. See the letter template 4D.

4.3 Criminal Identity Theft

Your impersonator could commit crimes in your name and you will not find out until you are arrested or are denied a job due to a criminal background check. You may also find that the criminal was convicted using your name and Social Security number. If you are denied employment because of a criminal arrest or conviction, you must get all documents relating to the conviction, including the police reports. You will need to contact the police department and the court in the jurisdiction where your perpetrator committed the crimes.

You will need to go to your own local law enforcement agency and have your photo and live scan fingerprints taken so that your local law enforcement agency can contact the law enforcement agency where your perpetrator committed the crime to help you prove that you are not the person who perpetrated the crime.

You will need to obtain the court files and mug shots and fingerprints of the perpetrator to show that you are not the identity thief. You may need to contact the prosecutor who prosecuted the case and ask for assistance in clearing your name. You may need to hire an attorney to assist you in getting a certificate of innocence and to help you correct court records and other databases. Contact our offices immediately to determine if legal fees are covered by your policy, since you may require legal assistance in clearing your name. Please see the letters provided in the template guide to assist you regarding Criminal Identity Theft.

4.4 Cyber Identity Thefts

You may find that someone has impersonated you on a social networking site or hackers have taken over your computer to send spam or perform attacks on other computers using your IP address. You may even find that the person tricked you into providing your user ID and password for online bank accounts and online payment sites such as PayPal. You need to prepare your FTC affidavit and your police report, and contact the service provider who allowed your imposter to create a personal profile, host a website or provide email service. You will need to request that your name or profile be taken off the system. Aside from contacting the service provider and asking that your identity be removed from all the cyber sites, you may also contact the anti-phishing working groups at www.antiphishing.org. Also contact the FBI at the Internet Crime Complaint Center at www.ic3.gov. Please see the letters provided in the template guide to assist you.

5. Government Identity Theft Issues

5.1 IRS and Tax Identity Theft

An identity thief may have used your legitimate taxpayer identification to fraudulently file an early tax return and claim your refund. There are other ways to commit IRS and state tax fraud for example; if you learn that more than one tax return was filed in your name, or if the IRS notifies you that you have a balance due (and you know that is not correct), or if you hear from the IRS that they are collecting against you for a year you did not file a tax return or the IRS says you owe money because you received additional wages from an employer unknown to you. If any of these occur, you will have to take immediate action to protect yourself.

If you receive a notice from IRS and you believe it is due to identity theft, you must respond immediately to the name and number printed on the notice or letter. You also may want to call the number for the taxpayer advocate before you respond to make sure the letter is not a scam. You will never hear from the IRS electronically. You will need to fill out the IRS Identity



Theft Affidavit, Form 14039 which is attached to the template letter in this guide. If you suspect you have tax issues related to identity theft, let the IRS know as soon as possible, even if you don't have any evidence that it's affected your tax return. Contact the IRS Identity Protection Specialized Unit (IPSU) at 800-908-4490. The IRS should help you to get your tax return filed, get you any refund you are due and protect your account from identity thieves in the future. You will need to send a letter to the IRS or your taxing agency to prove your identity with a copy of a valid government-issued identification, your IRS and FTC affidavit, a copy of your driver's license, your identity theft report and a utility bill to prove your address. See the letter template for the IRS in the template guide to assist you.

5.2 Social Security Number Fraud

An identity thief may have used your Social Security number to apply for a job, file taxes, obtain your tax refund, etc. Go online to the Social Security Administration and obtain a copy of your "Personal Earnings and Benefits Statement." Review it for accuracy and report any fraudulent use of your Social Security number. Follow-up in writing using the letter template labeled (GA/F) located in the guide provided.

Be aware that it is not wise to change to your Social Security number if you are a victim of fraud because archived databases with your former Social Security number will link to the new Social Security number. You may only be able to change a Social Security number if it is for a child under the age of 13 who has not been issued credit yet and probably has not been employed. If your card has been stolen or lost, order a replacement. Complete the Social Security Administration's application available at www.socialsecurity.gov/online/ss-5.html, calling 800-772-1213, or visiting your local Social Security Administration. You will need to provide the required documentation such as birth certificate and government ID at your local SSA office to get a replacement card. Visit the Social Security Administration: www.ssa.gov. Report fraud: 800-269-0271. Please see the letters provided in the template guide to assist you.

5.3 Mail Fraud: Notify the Local Postal Inspector

If you suspect that a perpetrator has filed a change of address in your name with the post office or if a fraudster has used the mail system to commit identity theft at a different address, notify the Postal Inspector (call the U.S. Post Office to obtain the appropriate postal phone number at 800-275-8777). Find out where the fraudulent credit cards, account statements, etc. were sent. (You will see fraudulent address information on the header of your credit report.)

Notify the local postmaster (in the city where fraud mail was sent) to forward all mail in your name to your real address. Request that the mail carrier who delivers to the fraud address be advised accordingly. If possible, purchase a locking mailbox for your residence as additional security. Additional information on postal fraud can be found on the U.S. Postal Service website. Please see the letters provided in the template guide to assist you.

5.4 Driver's License Number: Notify State Department of Motor Vehicles

You may need to change your driver's license number if someone is using your number as identification. Fraudsters often have false driver's licenses created from criminal sources. These look like real documents but are not and the state license bureau cannot do anything to stop the impostor from using a fake license. Call the state office of the Department of Motor Vehicles to see if another license was issued in your name. If your license has been used, go to your local Department of Motor Vehicle office to take a new photo and request a new number. Ask for the complaint form to begin the fraud investigation process and place a fraud alert on your profile. Send supporting documents with the completed form to the nearest investigation office so that they may coordinate with your law enforcement agency. Please see the letters provided in the template guide to assist you.

5.5 Passports

Whether or not you have a passport, contact the U.S. Department of State Passport office and advise them that you were the victim of identity theft. Follow the instructions provided to you by the Passport office and confirm the conversation in writing with the attached letter template located in this folder. Additional information on lost or stolen passports can be found on the U.S. Department of State's website: http://travel.state.gov/passport/lost/lost_848.html or by phone at 877-487-2778. Please see the letters provided in the template guide to assist you.



6. Visit the FTC Website for ID Theft Information, and to Make an Electronic Complaint

Call 877-ID-Theft (877-438-4338) or visit their website at www.ftc.gov/idtheft. The FTC has many resources and can provide you with additional information, and suggestions for resolving your identity theft, their website has statistics on fraud and current news releases related to identity theft.

Follow up to do:

- Complete the FTC Identity Theft Affidavit included in this folder and keep an electronic copy. The Identity Theft Affidavit serves as a level of proof of your stolen identity and summarizes the events. You will need to make as many copies of this as necessary to send with your letters. You should also update it if new events occur and keep an electronic file encrypted. You may wish to download important information from the FTC website to send with your correspondence.
- The FTC does not take on individual cases. If you wish to call in or e-mail a complaint to the FTC to let them know of any problems you are having with a creditor, credit reporting agency or law enforcement, they may refer you elsewhere for more advice. It is their job to take action against companies with deceptive practices or major violations of the Fair Credit Reporting Act. The FTC gathers complaints from victims and if enough complaints are made about a particular company, there will be an investigation into the practices of that company. So it is helpful to let the FTC know of any problems with difficult companies. Additionally they share your information about your fraud situation with law enforcement, and if your case has similarities to other cases, it helps law enforcement to gather evidence to apprehend large fraud rings. It may in effect help to prosecute your thief.
- Document the steps you have taken by writing them down and keeping them in your hard copy file and electronic file (encrypt sensitive information).
- Attach a copy of the Identity Theft Affidavit to all future written correspondence. This will serve as further proof that you are a victim for all agencies and financial institutions. It will save time so that you will not have to re-explain what has happened to you to everyone with whom you correspond. Scan the report so you will also have it ready to send electronically, (blacken out all but the last 4 digits of your Social Security number and account numbers).

7. Tips for Protecting Your Identity

- Check your credit reports at least twice a year. All consumers are entitled to one free credit report from each of the three major credit-reporting agencies each year. You can stagger your requests so that you may get one free report per quarter at www.annualcreditreport.com or toll free at 877-322-8228.
- Carefully review all bank, credit, and investment account statements regularly and be sure to review your health insurance benefit statements as soon as they arrive. Set up passwords to review accounts online several times a month to catch any errors or early detection of fraud. Notify such entities immediately if there are discrepancies.
- Install, use, and regularly update anti-virus and anti-spyware software on your computer. Make sure your computer is up-to-date with security patches for your operating system and applications. Windows users should turn the Auto-Update feature on. Security patches may be found at vendor's websites so check the sites periodically as these patches are frequently updated.
- For hard copy documents, shred or destroy any items that contain personal information before putting them in the garbage, and keep sensitive and confidential information in locked cabinets.
- Remove mail from your mailbox promptly, and get a locked mailbox if possible. Take mail with checks and sensitive information directly to the post office to mail, never send mail from your home mailbox.
- Notify your financial institution immediately if you suspect your accounts have been compromised or if you have lost any credit or debit cards, checks, cell phones or other electronic devices with your account information that is not unencrypted or at least password protected.
- Keep a list of all account numbers in a secure, locked location in case you experience problems with lost cards or theft of checks. If you keep passwords and other sensitive data on your electronic devices encrypt the data.



- Review your Personal Earnings and Benefits Statement from the Social Security Administration annually to check to see if someone is working using your SSN and “Google “ search your name to see what comes up that may reveal cyber identity theft.
- Only engage in online banking on a protected wired or wireless system and set up bank alerts for any fund transfers to be sent to you by email or text.
- Only access your personal financial information from a computer you “trust.” Internet kiosks and cyber cafes are not as secure as your personal computer.
- Make sure you have a complex user name and password using a mixture of 12 numbers/letters/characters and do not store the password or user name on your computer. The Federal Trade Commission (FTC) provides helpful password tips at www.onguardonline.gov/stopthinkclick.html.
- Do not give out your credit card number on the Internet unless the site is encrypted. Never send credit card or sensitive data in an email unless encrypted. Use only a true credit card instead of a debit card when purchasing on the web. Debit cards are vulnerable because payments serve as electronic checks, and the money is immediately drained from your account without giving you the opportunity to review the statement for fraud.
- Do not provide any personal information to a third party unless you are confident of the purpose and feel secure that the information will not be misused. Never give personal or financial information to trusted entities by e-mail or online without using encryption. Be wary of phone calls to you asking for personal information. Call only the number you know to be true that you verified online. Also, be wary of hard copy mail to your home or office asking for sensitive data. Call the number you know to be true of the entity before divulging information.
- When using any personal electronic devices, such as a cell phone, iPad or other device make sure that you do not put any confidential information electronic files unless you protect the files with complex passwords and encryption.
- If you use wireless networking, make sure to turn on all security features such as WPA encryption. Change the default password and SSID on your wireless router.
- If you receive an offer via e-mail or on a website or by regular mail and it sounds too good to be true, it probably is. Never respond to unsolicited e-mail or click a link within a suspicious e-mail asking you to validate your account information or provide personal information. Don’t trust websites or communications on-line or off-line without verifying that they are true and legitimate.

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